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IN THE HIGH COURT OF JUDICATURE AT MADRAS

DATED: 30-10-2026

CORAM

THE HON'BLE MR JUSTICE G.K. ILANTHIRAIYAN

CRL OP No. 31798 of 2026

CNR:{HCMA012148432026}

1.Saravanan
2.Raja

..Petitioners

Vs

1. The Deputy Superintendent of Police,
Rasipuram Police Station,
Namakkal District.

2. The Inspector of Police,
Rasipuram Police Station,
Namakkal District.
(Crime No.331 of 2026)

3. Raguna

..Respondent

PRAYER: Criminal Original Petition filed under Section 528 of the Bharatiya Nagarik Suraksha Sanhita, 2023, to modify the condition that "3. The petitioner/accused shall appear before Judicial Magistrate No.I, Court, Gobichettipalayam daily twice (i.e.) morning at 10.00 a.m. and evening at 05.00 p.m., until further orders" imposed in Crl.M.P.No.101 of 2026 dated 08.10.2026 on the file of the Special Court for Trial of Cases registered under SC/ST (POA) Act, Namakkal.

For Petitioner : Mr.Senthil S
For Respondent: Mr.R.Ganesh Kumar
Additional Public Prosecutor for R1 & R2

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ORDER

This Criminal Original Petition has been filed seeking to modify the condition imposed in Crl.M.P.No.101 of 2026, dated 08.10.2026, thereby directing the petitioners to appear before the Judicial Magistrate No.I, Gobichettipalayam daily twice (i.e.) morning at 10.00 a.m. and evening at 05.00 p.m, until further orders.

2. Heard the learned counsel appearing for the petitioners and the learned Additional Public Prosecutor appearing for the respondents 1 and 2. Perused the materials available on record.

3. The petitioners are an accused in Crime No.331 of 2026 for the offences under Sections 296(2), 118(1), 74, 329(3) and 326(b) of the Bharatiya Nyaya Sanhita, 2023 read with Section 3(1)(s) of the Scheduled Castes and the Scheduled Tribes (Prevention of Atrocities) Act. They were released on bail on 08.10.2026 by the learned Special Court for Trial of Cases Registered under SC/ST (POA) Act, Namakkal, on certain conditions, including the condition that he shall appear before the Judicial Magistrate No.I, Gobichettipalayam daily twice (i.e.) morning at 10.00 a.m. and evening at 05.00 p.m, until further order. It is further submitted that the petitioner has been complying with the conditions regularly. Hence, he seeks modification of the said condition.

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4. The learned Additional Public Prosecutor appearing for the respondents 1 & 2 submitted that the petitioner has been complying with the condition regularly.

5. Considering the submissions made on either side and the facts and circumstances of the case, this Court is inclined to relax the condition imposed on the petitioner in Crl.M.P.No.101 of 2026 dated 08.10.2026. Accordingly, the condition directing the petitioner to appear before the Judicial Magistrate No.I, Gobichettipalayam is hereby relaxed and the petitioner shall appear before the respondent police as and when required for interrogation. The other condition shall remain intact.

6. Accordingly, this Criminal Original Petition is ordered.

30-10-2026

Index: Yes/No
Speaking/Non-speaking order
Neutral Citation: Yes/No

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To

1. The Special Court for Trial of Cases Registered under SC/ST (POA) Act,
Namakkal,

2. The Judicial Magistrate No.I, Court,
Gobichettipalayam

3. The Deputy Superintendent of Police,
Rasipuram Police Station,
Namakkal District.

4. The Inspector of Police,
Rasipuram Police Station,
Namakkal District.
Chennai.

5. The Public Prosecutor,
High Court, Madras.

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G.K.ILANTHIRAIYAN J.

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